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And whereas the tramways authorised by this Act will afford much-needed facilities of locomotion between the urban district of Paignton which lies contiguous to the borough and the borough and it is expedient to authorise the Company to make and maintain such tramways:

And whereas plans and sections showing the lines and levels of the tramways and works by this Act authorised and indicating the position of the said tramways in the streets along which the same are to be laid and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerk of the peace for the county of Devon and are herein-after respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the *Torquay and Paignton Tramways Act 1909.*

Incorporation of
general Acts.

2. The following Acts and part of Act (that is to say):—

The Lands Clauses Acts; and

Section 3 (Interpretation of terms) Part II. (Construction of tramways) and Part III. (General provisions) of the Tramways Act 1870;

are so far as they are applicable and are not varied by or inconsistent with this Act incorporated with and form part of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such

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construction And in this Act unless the context otherwise requires— A.D. 1909.

“The Company” means the Torquay Tramways Company Limited;

“The Act of 1904” means the Torquay Tramways Act 1904;

“The borough” means the borough of Torquay;

“The corporation” means the mayor aldermen and burgesses of the borough;

“The district” means the urban district of Paignton;

“The council” means the urban district council of Paignton;

“The Dolter Company” means the Dolter Electric Traction Limited;

“The tramways” means the tramways and the works connected therewith by this Act authorised;

“The undertaking” means the undertaking of the Company;

“Mechanical power” includes electrical and every other motive power not being animal power;

“Engine” includes motor.

4. Subject to the provisions of this Act the Company may make form lay down work use and maintain in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections the tramways and the street works herein-after described with all necessary and proper buildings rails plates foundations machinery sleepers tubes wires, apparatus depôts works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section: Power to make tramways and street and other works.

Provided that Tramway No. 2 by this Act authorised shall not be opened for public traffic unless and until the Company have made the widenings (4) (5) and (6) of Torquay Road herein-after described.

The tramways herein-before referred to and authorised by this Act are—

Tramway No. 1 7 furlongs 5·00 chains in length of which 1 furlong is single line and 6 furlongs 5·00 chains is

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double line wholly situate in the parish of Tormoham in the borough commencing by a junction with the Company's existing tramway in the Torbay Road at its termination opposite the King's Gardens passing thence in a south-westerly direction along and terminating in the said road at the boundary of the borough with the district:

Tramway No. 2 1 mile 2 furlongs 9·80 chains in length of which 1 furlong 9·15 chains is single line and 1 mile 1 furlong 0·65 chain is double line wholly situate in the parish of Paignton in the district commencing by a junction with Tramway No. 1 at its point of termination as above described passing along the Torquay Road in a south-westerly direction thence in a southerly direction along that road and thence in a south-easterly direction into and along Hyde Road and terminating in that road at its intersection with Victoria Street.

The street works herein-before referred to and authorised by this Act are—

In the parish of Tormoham in the borough—

Widenings of Torbay Road:—

(1) On the north-west side thereof between points respectively 3·2 chains and 7·5 chains south-west of Seaway Lane;

(2) On the north-west side thereof between points respectively 7·9 chains and 1 furlong 2·15 chains south-west of Seaway Lane;

(3) On the north-west side thereof commencing at a point 2·7 chains south of the southern boundary wall of Phyllis Court and extending for a distance of 1 furlong 4·5 chains in a south-westerly direction:

In the district—

Widenings of Torquay Road:—

(4) On the north-west side thereof commencing at a point on the south-west side of the steps leading to Hollacombe Cottages and terminating in the new road opposite Copsleigh Terrace;

(5) On the south-east side thereof commencing at the south-west end of Copsleigh Terrace and terminating at the north-east end of Seaway Terrace;

(6) On the north-west side thereof commencing at a point 2·75 chains or thereabouts south-west of Headland Park Road and terminating at the east end of the front boundary wall of the property known as "The Cedars."

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5. The powers which were by section 4 of the Act of 1904 conferred on the Dolter Company to construct and maintain so much of Tramway No. 3 authorised by that Act as lies between its commencement at Castle Circus and its junction with Tramway No. 8 authorised by the said Act and so much of Tramway No. 5 authorised by the said Act as lies between its junction with Tramway No. 10 authorised by the said Act and its termination and Tramways Nos. 4 4a and 5a shall be transferred to and vested in and may be exercised by the Company.

Construction by Company of certain tramways authorised to be constructed by Dolter Company.

6. The period limited by section 19 (Period for completion of works) of the Act of 1904 for the completion of the tramways and portion of tramway referred to in the section of this Act the marginal note whereof is "Construction by Company of certain tramways authorised to be constructed by Dolter Company" is hereby extended for a further period of four years from the fifteenth day of August 1910 and on the expiration of that period the power by this Act granted for the completion of such tramways shall cease and determine except as to so much thereof as shall then be completed.

Extension of time for completion of portion of Tramway No. 3 and portion of Tramway No. 5 and Tramways Nos. 4 4a and 5a authorised by Act of 1904.

The Company shall be at liberty to construct so much of Tramway No. 4 authorised by the Act of 1904 as lies between a point two chains west of the intersection of Belgrave Road with Falkland Road and its junction with Tramway No. 1 authorised by the said Act on the overhead system of electric traction.

7. The following sections of the Act of 1904 are hereby incorporated with and form part of this Act (that is to say):—

Incorporation of sections of Act of 1904.

(1) In relation to the tramways by this Act authorised:—

Section 5 (Gauge of tramways);

Section 6 (Rails of tramways);

Section 7 (Plan of proposed mode of construction);

Section 8 (Penalty for not maintaining rails and roads);

Section 9 (Tramways to be kept on level of surface of road);

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Section 10 (Cross-overs to be constructed in certain cases);

Section 11 (Power to make additional cross-overs and to double tramway lines);

Section 12 (Modification of section 26 of Tramways Act 1870);

Section 13 (Application of road materials excavated in construction of works);

Section 14 (Sanitary authority to have access to sewers);

Section 15 (As to manholes);

Section 16 (Temporary tramways may be made where necessary);

Section 17 (As to alteration of water mains &c.);

Section 18 (Inspection by Board of Trade);

Section 20 (As to removal of snow &c.);

Section 21 (Motive power);

Section 22 (Special provisions as to use of electrical power);

Section 23 (Alteration of telegraph lines of Postmaster-General);

Section 24 (For protection of post office telegraph lines);

Section 26 (Apparatus used for mechanical power to be deemed part of tramway);

Section 27 (Attachment of brackets to buildings);

Section 28 (Byelaws);

Section 29 (Amendment of Tramways Act 1870 as to byelaws by local authority);

Section 30 (Passengers' fares);

Section 31 (Passengers' luggage);

Section 32 (As to fares on Sundays or holidays);

Section 33 (Restrictions not to apply to special carriages);

Section 34 (Cheap fares for labouring classes);

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Section 35 (Rates for goods); A.D. 1909.

Section 36 (Company not bound to carry goods);

Section 37 (Payment of fares);

Section 38 (Periodical revision of fares rates and
charges);

Section 42 (Company may reduce footpath);

Section 53 (Waiting rooms);

Section 57 (Working agreements):

(2) In relation to the street works:—

Section 40 (Limits of deviation);

Section 41 (Subsidiary works);

Section 43 (As to repair of altered streets):

(3) In relation to the general purposes of this Act:—

Section 56 (Saving as to powers of borrowing on
mortgage);

Section 59 (Penalty for malicious damage);

Section 60 (Regulations as to street traffic);

Section 61 (Consents of local or road authority);

Section 62 (Orders &c. of Board of Trade);

Section 63 (Authentication and service of notices);

Section 64 (Recovery of penalties);

Section 65 (Copy of Act to be registered):

Provided that the said sections of the Act of 1904 for the purposes of their application to or in connexion with Tramway No. 2 shall be read and construed as if the council were therein referred to instead of the corporation.

8. Section 30 (except subsections 1 and 5 thereof) of the Tramways Act 1870 in its application to the tramways and undertaking of the Company shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath.

Application
of section 30
of Tramways
Act 1870 to
overhead
wires.

9. The Company may for any purpose in connexion with the street works upon any lands acquired by them under the powers of this Act and also in any street or road within the limits of deviation shown on the deposited plans raise sink or

Power to
alter drains
&c.

A.D. 1909. — otherwise alter the position of any sewer drain water pipe gas pipe or hydraulic pipe belonging to or connected with any house or building adjoining or near to such works and also any main or other pipe for carrying a supply of gas or water or for hydraulic purposes or any pipe tube wire or apparatus laid down or used for telegraphic telephonic or electric purposes and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation to any company or person who suffers damage by such alteration :

Provided that the Company shall not raise sink or otherwise alter or interfere with any pipe tube wire or other apparatus laid down or used for telegraphic or telephonic purposes by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878. Provided also that nothing in this section shall extend to authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply.

Stopping of
roads during
construction
of tramways.

10. Subject to the provisions of this Act the Company may during the construction of the tramways with the consent of the road authority expressed in writing by the clerk of such authority stop up temporarily the carriageway or footway of any road or bridge as they think necessary and for that purpose may put up bars posts and other erections. The Company shall provide reasonable access for all persons bonâ fide going to or returning from any house in any road stopped up under the provisions of this section.

Repair of
part of road
where tram-
way is laid.

11. The materials with which and the manner in which the Company shall maintain and keep in good condition and repair the portion of road referred to in section 28 of the Tramways Act 1870 shall be such as may be agreed between the road authority and the Company or in case of difference between them as may be determined by the Board of Trade on the application of either party.

As to electri-
cal works &c.

12.—(1) The Company may in under or over the surface of any street or road (including the footways thereof) or public place in which the tramways are or will be situate or in which it may be necessary so to do in order to connect the tramways

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with any generating station construct lay down erect maintain A.D. 1909.
renew and repair electric wires conductors posts tubes boxes and
other electrical apparatus and may make and maintain openings
and ways for the purpose of working the tramways by electrical
power and may for that purpose subject to the provisions con-
tained in Part II. of the Tramways Act 1870 and to the provisions
of this Act open and break up any such street or road (including
the footways thereof) or public place and any sewers drains
water or gas pipes tubes wires telephonic and telegraphic apparatus
therein thereover or thereunder and remove replace or alter the
position of any lamp-post or letter box in any such street or
road (including the footways thereof) or public place Provided
as follows :—

(A) All posts and apparatus erected by the Company under
the powers of this Act in any street or road (includ-
ing the footways thereof) or public place shall be
of such design as the local authority may approve
and shall be placed in such position as the local
authority and road authority may approve Provided
that no post or other apparatus shall be erected on
the carriageway except with the consent of the Board
of Trade :

(B) The route in which any electrical apparatus is to be laid
or erected for the purpose of connecting the tram-
ways with a generating station shall be approved by
the local authority and the road authority within whose
jurisdiction each portion of the route is situate.

(2) Nothing in this section shall extend to or authorise any
interference with any works of any undertakers within the
meaning of the Electric Lighting Acts 1882 and 1888 to which
the provisions of section 15 of the former Act apply.

13.—(1) It shall be lawful for the Postmaster-General in Use of tram-
way posts by
Postmaster-
General.
any street or public road or part of a street or public road in
which he is authorised to place a telegraph to use for the
support of such telegraph any posts and standards (with the
brackets connected therewith) erected in any such street or
public road by the Company in connexion with the tramways
or the tramways authorised by the Act of 1904 (in this section
together referred to as “the tramways”) and to lengthen adapt
alter and replace such posts standards and brackets for the

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A.D. 1909. — purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

(a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:

(b) The Postmaster-General shall give to the Company not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:

(c) Unless otherwise agreed between the Postmaster-General and the Company the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Company or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:

(d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided:

(e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road : A.D. 1909.

(f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper state of condition and repair:

(g) The Postmaster-General shall make good to the Company and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Company their officers or servants :

(h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Company and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Company or failing agreement determined as herein-after provided :

(i) The Company shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Company of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Company their officers or servants :

(j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight

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days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Company the value of the same. Provided that if the Company or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Company from using their posts standards or brackets for the support of any of their electric wires and apparatus in connexion with their tramways or shall take away any existing right of the local authority of using the posts standards or brackets of the Company in connexion with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and the local authority in relation to the use of the posts standards or brackets by the Postmaster-General and the local authority respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Company" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meanings as in the Telegraph Act 1878.

For protection of
Postmaster-
General.

14. If any work authorised by this Act involves the removal or alteration of any post office letter-box the Company shall not remove or alter such box but shall give notice to the Postmaster-General of the removal or alteration required and the Postmaster-General shall remove or alter the box as he may think fit and the Company shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration.

Company
may lop trees
overhanging

15. The Company may cut and lop any trees planted in or near any highway along or across which any of the tramways

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are laid which may in any way interfere with the construction or working of the tramways or trolley wires in connexion therewith or with the clear and safe passage of the tramcars and the passengers thereon Provided that the Company shall not in the exercise of the powers of this section do unnecessary damage to any such trees and shall make compensation to any persons who may sustain damage by the exercise of the powers of this section Provided also that except in cases of emergency the Company shall give notice to the owners or reputed owners or their known agents eight days before exercising the said powers.

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 public
 highway.

16. Whereas pursuant to the Standing Orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of eight hundred and thirty-seven pounds has been deposited with the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act which sum is equal to five per centum upon the estimate for the tramways and four per centum upon the street works by this Act authorised (which sum is herein called "the deposit fund") Be it enacted that notwithstanding anything contained in the said Act so much of the deposit fund as represents five per centum upon the amount of the estimate in respect of the tramways authorised by this Act (herein-after called "the tramway deposit fund") shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the tramways open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways the tramway deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the tramways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways opened as aforesaid, and the portion of the tramway deposit fund which bears to the whole of the tramway deposit fund the same proportion as the length of the tramways so opened bears to the entire length of the tramways the High Court shall on the

Tramway
 deposit fund
 not to be re-
 paid except
 so far as
 tramway is
 opened.

A.D. 1909. application of the depositors order the portion of the tramway deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

Application
of tramway
deposit fund.

17. If the Company do not previously to the expiration of the period limited for the completion of the tramways complete the same and open them for the public conveyance of passengers then and in every such case the tramway deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof and also in compensating all road authorities for the expense incurred by them in taking up any tramways or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramway and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the tramway deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the tramway deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such receiver or to the liquidator or liquidators of the Company or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors Provided that until the tramway deposit fund has been repaid or re-transferred to the depositors or has become otherwise applicable as herein-before mentioned any interest or dividends accruing thereon shall as and when the same become payable be paid to or on the application of the depositors.

18. On the application of the depositors at any time after the passing of this Act the High Court may and shall order that that portion of the deposit fund applicable to the street works by this Act authorised and the interest and dividends thereon shall be paid or transferred to the depositors or any other person or persons whom the depositors may appoint in that behalf.

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Repayment
of portion of
deposit fund
applicable to
street works.

19. If the tramways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of tramways.

20. Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as may be required for the purposes of this Act or any of those purposes and for the provision of space for the erection of buildings adjoining or near to any street or road widened or improved in pursuance of the powers of this Act.

Compulsory
purchase of
lands.

21. In addition to the other lands which the Company are authorised to acquire under this Act the Company may enter upon take hold and use for the general purposes of their undertaking the lands herein-after mentioned (that is to say):—

Power to
take certain
lands.

Certain lands in the parish of Paignton in the district containing an area of about 2 roods 20 perches adjoining and on the south-east side of the Torquay Road situate in the north-east corner of a plot of land numbered 87 on the 25-inch Ordnance map Devonshire sheet CXXII-1 immediately adjoining the north-east end of Seaway Terrace.

22. For the protection of the National Telephone Company Limited (in this section referred to as “the Telephone Company”) the following provisions shall apply and have effect (that is to say):—

For pro-
tection of
National
Telephone
Company
Limited.

- (1) The Company shall not at any time during the currency of the Telephone Company’s licence from the Postmaster-General to conduct telephonic business remove or interfere with any poles wires pipes conduits or other apparatus (in this section referred to as “apparatus”) of the Telephone Company situate on

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any lands acquired by the Company under the powers of this Act except where the Company require so to do for the purposes of their undertaking and in such case the Company shall at their own expense prior to any such interference provide substituted apparatus in such positions as may be reasonably approved by the Telephone Company and if at any time during the currency of the said licence the Company shall require to remove or interfere with such substituted apparatus they shall provide other substituted apparatus in accordance with the foregoing provisions of this section :

- (2) If any difference arises under this section between the Company and the Telephone Company such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Correction
of errors &c.
in deposited
plans and
book of
reference.

23. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Devon and a duplicate thereof shall also be deposited with the town clerk of the borough or the clerk of the urban district rural district or parish council as the case may be in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk clerk of urban district rural district or parish council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

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A copy of or an extract from such certificate purporting to be under the hand of the clerk of the peace aforesaid (which copy or extract he shall give when required under his hand to any person interested) shall be conclusive evidence of such correction. A.D. 1909.

24. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

25. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:— Owners may be required to sell parts only of certain properties.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or

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compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that

any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1909.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provision of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

26. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be paid by the claimant : Costs of arbitration &c. in certain cases.

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the

A.D. 1909. Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case:

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensation in case of recently altered buildings.

27. In settling any question of disputed purchase money or compensation under this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirtieth day of November one thousand nine hundred and eight if in the opinion of such tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Period for compulsory purchase of lands.

28. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Purchase of lands by agreement.

29. In addition to the other lands which the Company are by this Act authorised to acquire they may purchase take on lease or acquire by agreement for the purpose of their undertaking and may hold any lands not exceeding five acres and they may on such lands and on any other lands purchased or acquired under the authority of this Act erect or construct and hold depôts yards offices buildings works and other conveniences in connexion with their undertaking but nothing in this Act shall exonerate the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on lands purchased or acquired by agreement under the powers of this section.

30.—(1) Section 54 of the Act of 1904 is hereby incorporated with this Act and shall apply to the tramways subject as herein-after provided.

(2) In the application of the provisions of the said section to the tramways and to the tramways and portion of tramway described in the section of this Act of which the marginal note is "Construction by Company of certain tramways authorised to be constructed by Dolter Company" the period of ten years therein mentioned shall date from the passing of this Act.

(3) If on or before the expiration of six months from and after the expiration of the last herein-before mentioned period of ten years the corporation shall not in pursuance of the provisions of the Tramways Act 1870 as amended by the provisions of section 54 of the Act of 1904 and of this section have required the Company to sell to the corporation the tramways in the borough which at the passing of this Act have been constructed under the powers of the Act of 1904 or such of the tramways in this section herein-before mentioned as are within the borough then all the said tramways within the borough shall for the purpose of the purchase thereof by the corporation be deemed to be one undertaking and the provisions of the last preceding subsection of this section shall cease to have effect and the said section 54 of the Act of 1904 shall be construed and have effect with respect thereto as if for the period of ten years therein mentioned there had been substituted the period of seventeen years from the passing of the Act of 1904.

31. If at the expiration of any period of six months during which the corporation under their powers in that behalf shall have been entitled to require and shall have required the Company to sell to them Tramway No. 1 by this Act authorised the council under their powers in that behalf shall not have required the Company to sell to them Tramway No. 2 by this Act authorised the powers conferred on the corporation by the Tramways Act 1870 as amended by section 54 of the Act of 1904 and this Act to purchase tramways within the borough are hereby extended so as to authorise the corporation to purchase and the corporation shall purchase the said Tramway No. 2 and all lands buildings works materials and plant of the Company suitable to and used by them for the purposes of the undertaking within the district upon the same terms and conditions and at the same

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Incorporation of section 54 of Act of 1904 and amendment of power of purchase of tramways of Company.

As to purchase by corporation of Tramway No. 2 by this Act authorised.

A.D. 1909. — time as they purchase the said Tramway No. 1. Provided that any such purchase by the corporation of the said Tramway No. 2 shall not take away alter or prejudice but shall be subject to the rights of the council under the provisions of the Tramways Act 1870 as amended by this Act to purchase such tramway and all lands buildings works materials and plant suitable to be used for the purposes of the undertaking within the district and for this purpose the corporation in the event of any such purchase by them shall be deemed to be the promoters of the said Tramway No. 2.

Agreements
as to purchase of
tramways.

32. The Company may enter into and carry into effect agreements with the corporation and the council for or with respect to the postponement of the date at which the right of the corporation or the council as the case may be to purchase so much of the undertaking as is situate within the borough and the district respectively shall be exercised for such periods not exceeding a period of forty-two years from the date of the agreement and on such terms and conditions as may be agreed between the Company and the corporation or the council and when any such agreement has been entered into the powers of purchase of the portion of the undertaking referred to in the agreement shall be exercised only in accordance with the provisions thereof.

Agreements
with road
authority.

33.—(1) The Company may subject to the provisions of this Act enter into agreements with the road authority with respect to the forming laying down maintaining renewing repairing working and using of the tramways and the rails plates sleepers wires apparatus and works connected therewith and for facilitating the passage of carriages and traffic over and along any roads or streets upon or along which any of the tramways are intended to be laid or any part thereof.

(2) The Company on the one hand and the road authority on the other hand may enter into and carry into effect agreements with respect to the cost of the widening and improving by the road authority of any roads streets bridges courts passages and footpaths within the district of such authority and as to the contribution by the Company towards the moneys to be expended on such works and the payment of any sums payable under this section by the Company to the road authority shall be deemed a purpose of this Act to which capital is properly applicable.

34. If by any Act passed during the present session of A.D. 1909. Parliament the Great Western Railway Company (in this section called "the Great Western Company") are authorised to divert the main road leading from Torquay to Paignton the Great Western Company shall within nine months after the passing of the said Act so far complete the diverted road in manner authorised as aforesaid as to enable a tramway to be constructed thereon and thereupon the following provisions for the protection of the Great Western Company shall unless otherwise agreed apply and have effect (that is to say):—

For protection of Great Western Railway Company.

(1) The Company shall before commencing the construction of Tramway No. 1 by this Act authorised pay to the Great Western Company the sum of two hundred and fifty pounds towards the cost incurred by that company in carrying out the said diversion :

(2) Notwithstanding anything in this Act contained or shown on the deposited plans Tramway No. 1 by this Act authorised shall be constructed as a double line along the diverted road in lieu of along the road proposed to be diverted and such double line of tramway so constructed shall be deemed to be part of Tramway No. 1 authorised by this Act and the Company shall within one month after receipt of notice from the Great Western Company requiring them so to do forthwith commence and complete with all reasonable despatch the construction of the said double line of tramway along the diverted road Provided that if within seven days after receipt of such notice as aforesaid the Company so request the Great Western Company shall on receipt of such request accompanied by all necessary plans sections and specifications carry out such work for and on behalf of the Company and to the reasonable satisfaction of the Company's engineer and the Company shall on completion thereof forthwith repay to the Great Western Company the reasonable cost incurred by them in connexion therewith :

(3) The Company shall for ever after the completion of the said double line of tramway along the diverted road properly maintain the roadway over the said bridge :

A D. 1909.

- (4) The said tramway and works and apparatus in connexion therewith so far as the same may affect the said bridge or railway of the Great Western Company shall be executed in accordance with plans sections and specifications to be previously submitted to and approved by the Great Western Company or in case of difference between them and the Company by an arbitrator to be appointed as herein-after provided and such works shall be executed under the superintendence and to the reasonable satisfaction of the Great Western Company :
- (5) The Company shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Great Western Company or any traffic thereon :
- (6) If the Great Western Company hereafter require to widen lengthen strengthen reconstruct alter or repair such bridge or to widen or alter the railway thereunder or to lift or support any such bridge the Company shall afford to the Great Western Company all reasonable and proper facilities for the purpose and if the Great Western Company find it necessary for such purpose that the working or user of any part of the tramway under or upon such bridge or approaches be wholly or in part stopped up or delayed or that such part of the tramway be wholly or in part taken up or removed and if the Great Western Company accordingly give to the Company seven days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or removed as stated in such notice at the reasonable expense of the Great Western Company and under the superintendence of the Company (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary

for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the Great Western Company shall be liable to pay compensation for any loss or damage occasioned to the Company by reason of such stoppage delay or taking up or removal as aforesaid :

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- (7) If having regard to the proposed position of any works of the Company by this Act authorised when considered in relation to the position of the works of the Great Western Company at any point where the tramway will be constructed over or adjoining the railway or other works of the Great Western Company it becomes advisable in order to avoid danger from the breaking or falling of wires or to avoid or remedy any interference with the working of the railway that the electric telegraphic telephonic or signal wires or apparatus of the Great Western Company shall be added to the Great Western Company may execute any works reasonably necessary for such alteration or addition and the reasonable expense of executing such works shall be borne by the Company :

- (8) If any difference arises under this section between the Company and the Great Western Company the same shall unless otherwise agreed be settled by an arbitrator to be appointed by the Board of Trade on the application of either party and the Arbitration Act 1889 shall apply.

35. Except so far as may be otherwise agreed between the corporation and the Company the following provisions shall apply and have effect (that is to say):—

For protec-
tion of cor-
poration.

- (1) Subsections 3 to 7 inclusive and subsection 10 and subsections 12 to 14 inclusive of section 58 of the Act of 1904 are hereby incorporated with this Act to the same extent for the benefit and protection of the corporation and the Company respectively as if the same had been specifically enacted herein Provided that in the application of subsection 3 as aforesaid to the construction of Tramway No. 1 by this Act authorised the Company shall in constructing and

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maintaining the said tramway pave so much of the road as lies between the outer rails thereof with wood paving and so much thereof as extends for a distance of eighteen inches on the outside of the outer rails with granite setts to the reasonable approval of the corporation :

(2) Before opening Tramway No. 1 for traffic the Company shall construct the widenings of Torbay Road numbered 1 2 and 3 mentioned in the section of this Act the marginal note whereof is "Power to make tramways and street and other works" in all respects to the approval of the corporation and shall also subject to the like approval make up footpaths along the widened portion of such road in all respects similar to the footpaths existing in the said road at the passing of this Act :

(3) The Company shall make all requisite and necessary provisions for propelling carriages upon the tramways by the overhead system of electrical traction subject in all respects to the regulations of the Board of Trade for the time being relating thereto and they shall at all times keep the same in an effective working condition :

Provided that the use of the said system under the provisions of this subsection shall not prejudice the rights of the corporation under or interfere with the working of the existing tramways authorised by the Act of 1904 as regards the Dolter Surface Contact System or prevent or prejudice the tramways authorised and worked under the provisions of such Act being worked together with the tramways authorised and worked under this Act as a through or continuous system of tramway :

(4) Subsection 9 of section 58 of the Act of 1904 is hereby repealed and in lieu and in substitution thereof the following provisions shall apply both in respect of the tramways authorised and worked under the said Act and this Act :—

(A) The Company shall at all times take and use from the generating station of the corporation and the corporation shall supply all electrical energy

which shall be required for the purpose of efficiently working the tramways in the borough constructed under the Act of 1904 and this Act and the Company shall pay to the corporation all sums due by them for electrical energy supplied by the corporation and measured at the generating station aforesaid according to the following rates or scale of charges (that is to say):—

(i) For working the tramways during the period between the passing of this Act and the thirty-first day of July one thousand nine hundred and twelve each year to be taken as commencing on the first day of August for the first 100,000 Board of Trade units per annum at the rate of twopence per unit For the next 50,000 units in the same year in excess of the first 100,000 at the rate of one penny three farthings per unit For any additional quantity in excess of 150,000 units in the same year at the rate of one penny halfpenny per unit With a minimum annual payment to the corporation of one thousand two hundred pounds ;

(ii) At the expiration of the aforesaid period the charges for electrical energy shall be such sum as may be agreed between the Company and the corporation or in default of agreement as shall be fixed by arbitration;

(B) In the event of the fair market price of suitable coal used by the corporation delivered at their generating station exceeding the price of twenty shillings per ton from any circumstance whatsoever then the Company shall pay to the corporation in addition to the prices aforesaid such additional price per unit as may be agreed between the Company and the corporation or in default of agreement as shall be determined by arbitration ;

(c) Payment for electrical energy or materials supplied and for any work done by the corporation shall be made monthly not later than 21 days after the end of each month;

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(D) The corporation shall supply all such electrical energy at such voltage as the Company may reasonably require at a pressure of not less than 500 or more than 550 volts at the generating station and of such description of current and in such quantity not being less than 250 kilowatts and not exceeding the present traction plant capacity of the said generating station properly maintained and properly run as may reasonably be required by the Company for the purpose of the said tramways. For the purpose of this subsection the present traction plant is taken as being two 250 kilowatts generating sets and an 800 ampère hour battery;

(E) In the event of any breach other than a trivial breach by the corporation of their obligations contained in this subsection (except arising from fire lightning tempest strikes of workmen or any other circumstances over which the corporation have no control but failure of generating plant shall not be considered as beyond the control of the corporation unless such failure shall be caused by any act or default of the Company) the Company shall be at liberty by notice in writing to the corporation to forthwith determine the provisions of this subsection without prejudice to the rights of the Company in respect of any such breach as aforesaid:

- (5) Any difference or dispute between the corporation and the Company of whatsoever nature in connexion with or arising out of the provisions of this section shall be submitted to the sole arbitration of an arbitrator to be agreed or failing agreement to be appointed by the Board of Trade upon the application in writing of either the corporation or the Company.

For protection of
Paignton
Urban District Council.

36. For the protection of the urban district council of Paignton (in this section called "the council") the following provisions shall unless otherwise agreed by writing under seal between the council and the Company and notwithstanding anything in this Act the Act of 1904 or the Tramways Act 1870 have effect (that is to say):—

- (1) The Company shall complete Tramway No. 2 and the street works numbered (4) (5) and (6) by this Act

authorised and shall open the said tramway for public traffic within a period of two years from the passing of this Act: A.D. 1909.

- (2) Within one calendar month after the passing of this Act the Company shall pay to the council the sum of three hundred pounds by way of deposit which sum shall be repaid by the council to the Company with interest at the deposit rate upon the said street works being completed and the said tramway being opened for public traffic within the said period of two years but failing such completion and opening within the said period the said sum shall be retained by and forfeited to the council :
- (3) The tramways shall be constructed and worked by the Company according to some system of electric traction not being the Dolter system or any other system depending on surface contact or the use of live studs :
- (4) The Company shall not under the powers of this Act without the previous consent in writing of the surveyor of the council break up any road within the district or interrupt the traffic thereon for more than half the width of the roadway of such road at any one time or open or break up at any one time a greater consecutive length than 100 yards of any such road nor shall such openings or breakings up be carried out without leaving a clear space of a quarter of a mile between consecutive openings or breakings up unless with the like written consent :
- (5) The materials with which and the manner in which the Company shall maintain and keep in good condition and repair the portion of road referred to in section 28 of the Tramways Act 1870 shall in regard to the part of the tramways within the district be such as may be agreed between the council and the Company Provided that unless otherwise agreed between the council and the Company so far as concerns the tramways from Christ Church to Hyde Road the portion of road referred to in the said section 28 shall be paved throughout with good and substantial wood paving and so far as concerns the tramways from

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the boundary of the borough to Christ Church the portion of road between the rails shall be laid with macadam coating to a thickness of not less than four inches in any part and with a granite sett next each rail and so much of the road as extends eighteen inches beyond the rails of and on each side of any such tramway shall be paved with sound granite setts on cement concrete not less than six inches thick and the whole of such paving shall be carried out to the reasonable approval of the surveyor of the council:

- (6) So much of Tramway No. 2 as extends from Christ Church to the terminus of the tramway in Hyde Road shall be laid as double line throughout provided that the sanction of the Board of Trade to such laying thereof can be obtained and provided also that no additional road widenings are necessitated by such laying thereof:
- (7) The provisions of the section of this Act whereof the marginal note is "Arbitration" shall not apply to any question arising between the council and the Company as to the withholding of any consent by the council under any of the provisions of this Act:
- (8) The Company shall provide all such electrically propelled carriages and other rolling stock, utensils and appliances as may be requisite for efficiently working the tramways and for maintaining thereon such full and sufficient service of carriages as the council may from time to time reasonably require:
- (9) All works of or connected with the construction or maintenance of the tramways or road widenings by this Act authorised within the district or any works contingent upon or connected with the said tramways and road widenings together with all conveniences connected therewith shall be at all times executed and maintained by the Company to the reasonable satisfaction of the council and in respect of all matters connected with the works or maintenance herein-before mentioned the Company shall at all times comply with the reasonable requirements of the council:

- (10) The Company shall not use or permit the use of their ordinary passenger carriages for the conveyance of animals or goods or for traffic other than the conveyance of passengers with their luggage not exceeding 56 lbs. in weight and subject to the limitations aforesaid the tools of workmen conveyed in workmen's carriages :
- (11) The Company shall not place or exhibit within or upon the carriages or upon any poles standards or other portions of the tramways within the district without the consent of the council in writing any advertisement or placard of any kind or nature whatsoever except such as relate to the working of or the traffic on the tramways but such consent shall not be unreasonably withheld :
- (12) The Company shall not run carriages upon the tramways on Sundays except between the hours of 12 noon and 10 o'clock in the evening without the consent in writing of the council under the hand of their clerk :
- (13) Whenever for the purpose of making forming laying down maintaining repairing or renewing any of the tramways or for the purpose of executing any road widenings or other street works the Company are authorised to alter or interfere with any mains or pipes for the supply of water or for sewerage purposes or any tubes wires or apparatus belonging to or controlled by the council the Company shall give fourteen days' notice in writing to the council of such works and shall at the same time send sufficient specifications or other information to show the nature of the interference with any mains pipes sewers conduits or structures of the council and the council shall by notice given within fourteen days of the receipt of such last-mentioned notice of their desire to do so have the right to execute any works of alteration of any mains pipes sewers conduits or structures belonging to them rendered necessary by the works of the Company at the reasonable cost and expense of the Company :

A.D. 1909.

- (14) If at any time any sewer or drain or water main or other apparatus vested in or belonging to the council shall be or become injured or damaged by reason or in consequence of any act works or operations of the Company or of its contractors or servants the council may immediately thereupon in case of emergency or otherwise on giving to the Company forty-eight hours' notice at least in writing of its intention so to do and of the nature and extent of the injury or damage alleged and the works proposed to be executed at the cost of the Company do and execute such acts and works as the council may deem necessary in order to effect the reinstatement of such sewer or drain or water main or other apparatus to as good a condition as it was in prior to such damage or injury:
- (15) If at any time before the Company shall have commenced the construction of the portion of Tramway No. 2 which is to be situate in that portion of Torquay Road which lies between "Brookfield" carriage entrance and the junction of the said road with Preston Sands Road (north-west of Preston House and Preston Manor House) the council shall determine to construct or permit the construction of a new main road in substitution for the said portion of Torquay Road and if before the construction of the said portion of Tramway No. 2 has been commenced as aforesaid such new main road shall be duly laid out and completed in such a manner as to enable the said tramway to be constructed thereon the Company shall with the consent of the Board of Trade construct the said tramway along such new main road instead of along the said portion of Torquay Road:
- (16) The Company shall repay to the council before commencing the construction of Tramway No. 2 the amount of any purchase money and costs charges and expenses which the council have already paid or incurred or may hereafter pay or incur in relation to the acquisition of certain lands in or adjoining Torquay Road so far as the same are required for

the carrying out of the said street works numbered 4 5 and 6 by this Act authorised and which the council have taken over or agreed to take over from the trustees of the Dendy Estate and the Ecclesiastical Commissioners respectively: A.D. 1909.

(17) Forthwith after the passing of this Act the Company shall repay to the council all costs charges and expenses incurred by the council for the purposes of their opposition to the Bill for this Act or otherwise in connexion with the said Bill or any negotiations relating thereto and the sum of two hundred pounds which has already been deposited by the Company with the council as security shall be retained by the council until due payment of the whole of the said costs charges and expenses:

(18) Any difference or dispute between the council and the Company of whatsoever nature in connexion with or arising out of the provisions of this section shall be submitted to the sole arbitration of an arbitrator to be agreed upon by the council and the Company or failing agreement to be appointed by the Board of Trade upon the application in writing of either the council or the Company.

37.—(1) If the undertaking of the Paignton Electric Light and Power Company Limited (in this section called “the Electric Company”) shall at any time be transferred to the council and the council by notice in writing to the Company given either before or after the date of such transfer shall require the Company to take a supply of electrical energy under this section the following provisions shall have effect (that is to say):—

Supply of
electrical
energy for
working
tramways in
Paignton
district.

(A) From and after such date as the council may specify in the said notice (not being earlier than the date of the transfer of the said undertaking and not being less than twelve months from the date of the giving of the said notice) the Company shall at all times take and use from the generating station of the council and the council shall supply all electrical energy which shall be required for the purpose of efficiently and in accordance with this Act working such part of the tramways as is situate within the district and

A.D. 1909.

the Company shall pay to the council all sums due by them for electrical energy supplied by the council and measured at the generating station aforesaid according to the following rate or scale of charges (that is to say):—

For the first 100,000 Board of Trade units per annum at the rate of twopence per unit;

For the next 50,000 units in the same year in excess of the first 100,000. at the rate of one penny three farthings per unit;

For any additional quantity in excess of 150,000 units in the same year at the rate of one penny halfpenny per unit:

Provided that at the expiration of a period of six years from the first commencement of the supply of electrical energy by the council under this section and thereafter at the expiration of every succeeding period of six years either the Company or the council may by notice in writing to the other require that as from the expiration of such period of six years the said rate or scale of charge shall be revised in such manner and to such extent as may be agreed between the Company and the council or as failing such agreement may be determined by arbitration and from and after the expiration of such period of six years the said rate or scale of charges as so revised shall apply as if the same had originally been contained in this section:

(B) In the event of the fair market price of coal used by the council at their generating station exceeding the price of twenty shillings per ton from any circumstance whatsoever then the Company shall pay to the council in addition to the prices aforesaid such additional price per unit as may be agreed between the Company and the council or in default of agreement as shall be determined by arbitration:

(c) Payment for electrical energy or material supplied and for any work done by the council shall be made monthly not later than twenty-one days after the end of each month:

(D) The council shall supply all such electrical energy at A.D. 1909.
such voltage as the Company may require not being
less than 500 nor more than 550 volts at the gene-
rating station and of such description of current as
may reasonably be required by the Company for the
purpose of the said part of the tramways :

(E) In the event of any breach other than a trivial breach
by the council of their obligations contained in this
section (except arising from fire lightning tempest
strikes of workmen or any other circumstances over
which the council have no control but failure of
generating plant shall not be considered as beyond
the control of the council) the Company shall be at
liberty by notice in writing to the council to forth-
with determine the provisions of this section without
prejudice to the rights of the Company in respect
of any such breach as aforesaid :

(F) Any difference or dispute between the council and the
Company of whatsoever nature in connexion with or
arising out of the provisions of this section shall
be submitted to the sole arbitration of an arbitrator
to be agreed upon by the council and the Company
or failing agreement to be appointed by the Board
of Trade upon the application in writing of either the
council or the Company.

(2) Until the undertaking of the Electric Company shall be
transferred to the council the Company shall not use for the
working of the tramways in the district any electrical energy
save such as shall have been either supplied by the Electric
Company or generated within the district.

38. Proceedings for the recovery of any demand made Recovery of demands.
under the authority of this Act or any incorporated enactment
whether provision is or is not made for the recovery in any
specified court or manner may be taken in any county court
having otherwise jurisdiction in the matter provided that the
demand does not exceed the amount recoverable in that court
in a personal action.

39. If any question not otherwise provided for under this Arbitration.
Act arises between the Company and any local or road authority

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Act, 1909.

A.D. 1909. — such question shall if either party so require be determined by the Board of Trade or by an arbitrator to be appointed by the Board of Trade.

Provision as
to general
Tramway
Acts.

40. Nothing in this Act contained shall exempt the Company or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

Costs of Act.

41. All costs charges and expenses of and preliminary and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

HOUSES BUILDINGS OR LANDS OF WHICH PORTION ONLY MAY
BE REQUIRED.

Borough District or Parish.	Numbers on deposited Plans.
Borough of Torquay—	
Parish of Tormoham - - -	2 3 4 5 6 7 8 and 9.
Parish and urban district of Paignton -	3 4 5 6 7 8 and 9.

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